

The Indian Institutes of Information Technology (Public-Private Partnership) Act, 2017

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The Indian Institutes of Information Technology (Public-Private Partnership) Act, 2017

UNION OF INDIA

India

The Indian Institutes of Information Technology (Public-Private Partnership) Act, 2017

Act 23 of 2017

Published on 9 August 2017

Commenced on 9 August 2017

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[Amended by THE INDIAN INSTITUTES OF INFORMATION TECHNOLOGY LAWS (AMENDMENT) ACT, 2020 (Act 28 of 2020) on

28 September 2020

]

The Indian Institutes of Information Technology (Public-Private Partnership) Act, 2017

(Act

No. 23 of 2017

)

[Dated 9th August, 2017]

Ministry of Law and Justice
(Legislative Department)

The following Act of Parliament received the assent of the President on the 9th August, 2017 and is hereby published for general information:-

An Act to declare certain Indian Institutes of Information Technology established under public-private partnership as institutions of national importance, with a view to develop new knowledge in information technology and to provide manpower of global standards for the information technology industry and to provide for certain other matters connected with such institutions or incidental thereto.

Be it enacted by Parliament in the Sixty-eighth Year of the Republic of India as follows:-

Chapter I

Preliminary

1.

Short title and commencement.

(1)

This Act may be called the Indian Institutes of Information Technology (Public-private Partnership) Act, 2017.

(2)

It shall come into force on such date as the Central Government may, by notification in the Official Gazette, appoint.

2.

Declaration of certain institutions as institutions of national importance.

- Whereas the objects of the Institutes mentioned in the Schedule are such as to make them institutions of national importance, it is hereby declared that each such Institute is an institution of national importance.

3.

Definitions.

- In this Act, unless the context otherwise requires,-

(a)

"appointed day" means the date of establishment of the Institutes established under sub-section (2) of section 4;

(b)

"Board", in relation to any Institute, means the Board of Governors referred to in sub-section (1) of section 14;

(c)

"Chairperson" means the Chairperson of the Board appointed under sub-section (2) of section 14;

(d)

"Co-ordination Forum" means the Co-ordination Forum established under sub-section (1) of section 38;

(e)

"Director" means the Director of the Institute;

(f)

"existing Institute" means the Institute mentioned in column (3) of the Schedule;

(g)

"industry partner" means an individual, or a trust established under the Indian Trusts Act, 1882, or a company established under the Companies Act, 2013, or society formed and registered under the Societies Registration Act, 1860, or a financial institution or a combination of one or more of such industry partners;

(h)

"Institute" means any of the institutions mentioned in column (5) of the Schedule and such other Institutes established under section 11;

(i)

"notification" means a notification published in the Official Gazette and the expression "notify" shall be construed accordingly;

(j)

"prescribed" means prescribed by rules made under this Act;

(k)

"public-private partnership " means such partnership under a scheme of the Central Government which provides for establishment of Institute involving collaboration between the Central Government, the State Government and industry

partners;

(l)

"Schedule" means the Schedule to this Act;

(m)

"Senate", in relation to any Institute, means the Senate thereof;

(n)

"Statutes" and "Ordinances", in relation to any Institute, mean the Statutes and Ordinances of the Institute made under this Act.

Chapter II

The Institutes

4.

Incorporation of Institutes.

(1)

On and from the commencement of this Act, every existing Institute, shall be a body corporate by the same name as mentioned in column (5) of the Schedule.

(2)

On and from the appointed day, any other Institute of Information Technology as may be established under section 11 shall be a body corporate by such name as the Central Government may, by notification, specify.

(3)

Every existing Institute or any Institute established under sub-section (2) shall have perpetual succession and a common seal, with power, subject to the provisions of this Act, to acquire, hold and dispose of property, both movable and immovable, and to contract, and shall, by its name, sue or be sued.

5.

Effect of incorporation of Institutes.

- On and from the date of commencement of this Act,-

(a)

any reference to any existing Institute in any contract or other instrument shall be deemed to be reference to the corresponding Institute mentioned in column (5) of the Schedule;

(b)

all properties, movable and immovable, belonging to every existing Institute shall vest in the corresponding Institute mentioned in column (5) of the Schedule;

(c)

all rights, debts and other liabilities of every existing Institute shall be transferred to, and be the rights and liabilities of, the corresponding Institute mentioned in column (5) of the Schedule;

(d)

every person employed by any existing Institute, immediately before such commencement, shall hold his office or service in the corresponding Institute mentioned in column (5) of the Schedule, with the same tenure, at the same remuneration and upon the same terms and conditions and with the same rights and privileges as to pension, leave, gratuity, provident fund and other matters as he would have held the same if this Act had not been enacted and shall continue to do so unless and until his employment is terminated or until such tenure, remuneration and the terms and conditions are duly altered by the Statutes:

Provided that if the alteration so made is not acceptable to such employee, his employment may be terminated by the Institute in accordance with the terms of the contract with the employee or, if no provision is made therein in this behalf, on payment to him by the Institute of compensation equivalent to three months' remuneration in the case of permanent employees and one month's remuneration in case of other employees:

Provided further that any reference, by whatever form of words, to the Director, Registrar and other officers of any existing Institute, in any law for the time being in force, or in any instrument or other document, shall be deemed to be reference to the Director, Registrar and other officers of the corresponding Institute mentioned in column (5) of the Schedule;

(e)

every person pursuing, before the commencement of this Act, any academic or research course in any existing Institute,

shall be deemed to have migrated and registered with the corresponding Institute mentioned in column (5) of the Schedule, on such commencement at the same level of course in the Institute from which such person migrated;

(f)
all suits and other legal proceedings instituted or which could have been instituted by or against an existing Institute, immediately before the commencement of this Act, shall be continued or instituted by or against the corresponding Institute mentioned in column (5) of the Schedule.

6.

Objects of Institute.

- Every Institute shall have the following objectives, namely:-

(a)
to emerge amongst the foremost institutions in information technology and allied fields of knowledge in the global context;

(b)
to advance new knowledge and innovation in information technology and allied fields to empower the nation to the forefront in the global context;

(c)
to develop competent and capable youth imbued with the spirit of innovation and entrepreneurship with the social and environmental orientation to meet the knowledge needs of the country and provide global leadership in information technology and allied fields;

(d)
to promote and provide transparency of highest order in matters of admission, appointment to various positions, academic evaluation, administration and finance.

7.

Powers and functions of Institute.

(1)
Subject to the provisions of this Act, every Institute shall exercise the following powers and perform the following functions, namely:-

(a)
to provide instructions in such fields of knowledge relating to information technology and allied areas as the Institute may deem fit, for the advancement of learning and dissemination of knowledge;

(b)
to lead, organise and conduct research and innovation in information technology and allied fields of knowledge in such manner as the Institute may deem fit, including in collaboration or in association with any other Institute, educational institution, research organisation, body corporate or financial organisations at national or global level;

(c)
to hold examinations and grant degrees, diplomas and other academic distinctions or titles and to confer honorary degrees;

(d)
to create academic, administrative, technical, ministerial and other posts under the Institute other than the post of Director of the Institute and to make appointments thereto;

(e)
to appoint persons working in any other Institute or educational institution or involved in research of significance in any industry as adjunct, guest or visiting faculty of the Institute on such terms and for such duration as the Institute may decide;

(f)
to create administrative and other posts and to make appointments thereto on the basis of criteria as may be decided by the Board;

(g)
to make provision for dissemination of knowledge emerging from research and for that purpose to enter into such arrangements, including consultancy and advisory services, with other institutions, industry, civil society or other organisations, as the Institute may deem necessary;

(h)

to create a website, highlight all information not restricted to those related to students, admission, fee, administrative structure, policies including recruitment rules, faculty and non-faculty posts, annual reports and financial details including statement of account of the Institute;

(i)

to determine, specify and receive payment of fees and other charges, as the Institute may deem fit, from students and any other person, institution or body corporate for instructions and other services, including training, consultancy and advisory services, provided by the Institute;

(j)

to deal with any property belonging to, or vested in, the Institute in such manner as the Institute may deem fit for advancement of the objectives of the Institute:

Provided that no land or other immovable property shall be disposed of by the Institute without the prior approval of the concerned State Government and the Central Government;

(k)

to receive gifts, grants, donations or benefactions from the Government and to receive bequests, donations and transfer of movable or immovable properties from testators, donors or transferors, as the case may be;

(l)

to co-operate with educational or other institutions in any part of the world having objects wholly or partly similar to those of the Institute by exchange of teachers and scholars and generally in such manner as may be conducive to their common objects;

(m)

to establish and maintain such infrastructure as may be necessary, incidental or conducive to the attainment of the objectives of the Institute;

(n)

to institute and award fellowships, scholarships, exhibitions, prizes and medals; and

(o)

to do all such things as may be necessary, incidental or conducive to the attainment of all or any of the objectives of the Institute.

(2)

Subject to the provisions of this Act, every Institute may take up the following works, namely:-

(a)

supporting and collaborating with educational Institutes imparting technical or information technology courses located in the zone or region;

(b)

advising the State Governments and Union territory Administrations included in its zone in matters of information technology and other technological issues referred by them to the Institute for advice.

8.

Institutes to be open to all races, creeds and classes.

(1)

Every Institute shall be open to all citizens irrespective of gender, caste, creed, disability, domicile, ethnicity, social or economic background.

(2)

No bequest, donation or transfer of any property shall be accepted by any Institute which in the opinion of the Co-ordination Forum involves conditions or obligations opposed to the spirit and object of this section.

(3)

Admissions to every programme of study in each Institute shall be based on merit assessed through transparent and reasonable criteria disclosed through its prospectus, prior to the commencement of the process of admission by such Institute:

Provided that every such Institute shall be a Central Educational Institution for the purposes of the Central Educational Institutions (Reservation in Admission) Act, 2006.

9.

Teaching at Institute.

- All teaching at each of the Institute shall be conducted by or in the name of the Institute in accordance with the Statutes and Ordinances made in this behalf.

10.

Institute to be a distinct legal entity not-for-profit.

(1)

Every Institute shall be a not-for-profit legal entity and no part of the surplus, if any, in revenue of such Institute, after meeting all expenditure in regard to its operations under this Act, shall be invested for any purpose other than for the growth and development of such Institute or for conducting research therein.

(2)

Every Institute shall strive to raise funds for creation of a corpus for selfsufficiency, sustainability and future development of the Institute.

11.

Establishment of Institute by Central Government, State Government and industry partners.

(1)

The State Government shall identify at least one industry partner, and preferably three industry partners, for collaboration and submit a proposal to the Central Government.

(2)

The Central Government shall examine the proposal on the basis of such criteria, as may be prescribed, which shall include the following, namely:-

(a)

the investment of capital required for establishing the proposed Institute to be borne by the Central Government, the concerned State Government and industry partners in the ratio 50:35:15 and recurring expenditure, as may be considered necessary during the first five years of operation, to be made available by the Central Government:

Provided that the ratio of investment of capital required for establishing the proposed Institute in North Eastern States shall be 57.5:35:7.5;

(b)

the expertise and standing of the industry partners proposed in sub-section (1) in the field of information technology;

(c)

the assessment of the capability, financial and other resources of industry partners to support the Institute;

(d)

the suitability of adequate land, to the extent of fifty to hundred acres, to be provided by the State Government free of cost;

(e)

the availability of, or the commitment of the State Government to make available, adequate physical infrastructure namely, water, electricity, road connectivity and security, at the proposed site.

(3)

The Central Government may, with the concurrence of the concerned State Government, suggest modifications, if any, to the proposal submitted to it under sub-section (1).

(4)

Where a proposal submitted by the State Government under sub-section (1) is not acceptable to the Central Government, the Central Government shall communicate its decision to that State Government, specifying the reasons for such decision.

(5)

The Central Government shall, on acceptance of the proposal with modifications, if any, under sub-section (3), enter into a memorandum of understanding or an agreement with the concerned State Government and the industry partners for the establishment of the proposed Institute.

(6)

The industry partner shall-

(a)

actively participate in the governance of the Institute within the overall framework;

- (b) support and facilitate joint research projects with the Indian Institutes of Information Technology either through funding, collaboration or in any other manner;
- (c) depute experienced individuals as adjunct faculty;
- (d) encourage, enable, support and mentor students to do research project as a part of their course curriculum, within their enterprise;
- (e) accept faculty members of the the Indian Institutes of Information Technology on a sabbatical to work for short period with the industry;
- (f) co-create programs as per the requirements of the industry with the Institution;
- (g) provide internship to students from the the Indian Institutes of Information Technology;
- (h) facilitate for placement of students from the Indian Institutes of Information Technology;
- (i) sponsor their eligible employees for doctorate studies in the Indian Institutes of Information Technology; and
- (j) fund and mentor the startups in the Institution.

(7) Every memorandum of understanding or agreement referred to in sub-section (5) shall contain-

- (a) the investment proposal of capital in establishment of the Institute and the respective shares as may be prescribed;
- (b) the first Statutes of the Institute;
- (c) the commitment of the Central Government, the concerned State Government, and the industry partner in ensuring autonomy to the proposed Institute; and
- (d) the conditions, if the industry partners pulls out.

Chapter III

Authorities of Indian Institutes of Information Technology Established in Public-Private Partnership

12.

Visitor.

- (1) The President of India shall be the Visitor of every Institute.

(2)

The Visitor may appoint one or more persons to review the work and progress of any Institute and to hold inquiries into the affairs thereof and to report thereon in such manner as the Visitor may direct.

(3)

Upon receipt of any such report, the Visitor may take such action and issue such directions as he considers necessary in respect of any of the matters dealt within the report and the Institute shall be bound to comply with such directions within a reasonable time.

13.

Authorities of Institute.

- The following shall be the authorities of an Institute, namely:-

(a)

Visitor;

(b)

Board of Governors;

(c)

Senate;

(d)

Finance Committee;

(e)

such other authorities or posts as may be declared by the Statutes to be the authorities of the Institute.

14.

Board of Governors.

(1)

The Board of Governors of each Institute shall be the principal policy making and executive body of the Institute.

(2)

The Board shall consist of the following members, namely:-

(a)

Chairperson, an eminent technologist or industrialist or educationist to be nominated by the Visitor on the recommendation of the Central Government;

(b)

one nominee each of the Central Government and the concerned State Government;

(c)

three eminent persons, of which at least one shall be a woman, appointed by the Board out of industry, research laboratories, and civil society, one from each category;

(d)

two eminent academicians appointed by the Board;

(e)

one nominee representing each of the industry partners:

Provided that if there are more than two industry partners then the number of representatives of industry partners at any time would be limited to two, chosen amongst themselves by rotation every two years;

(f)

Director of an Indian Institute of Technology or a National Institute of Technology located in the region, to be nominated by the Board;

(g)

two members from the faculty of the Institute, preferably one Professor and one Associate/Assistant Professor, to be nominated by the Senate;

(h)

one person from the Scheduled Castes or the Scheduled Tribes distinguished in the field of education or industry or social service or public service, to be nominated by the Board, in case any of the above do not belong to the Scheduled Castes or the Scheduled Tribes; and

(i)

Director of the Institute, ex officio.

(3)

Registrar of the concerned Institute shall be the ex officio non-member Secretary of the Board.

(4)

The First Board of Governors shall be notified by the Central Government by obtaining nominations under sub-section (2), other than the members referred to in clauses (c), (d), (f) and (h), which shall be decided in the first meeting of the Board of Governors.

15.

Term of office of vacancies among and allowances payable to, members of Board.

(1)

Save as otherwise provided in this section, the term of office of the Chairperson or any other member of the Board, other than an ex officio member, shall be for a period of three years from the date of nomination.

(2)

The term of office of an ex officio member shall continue so long as the member holds the office by virtue of which he is a member.

(3)

A member of the Board, other than an ex officio member, who fails to attend three consecutive meetings of the Board without the leave of absence, shall cease to be a member of the Board.

(4)

One-third of the members of the Board shall form a quorum of the Board, provided at least three members are from members referred to in clauses other than clauses (e), (g) and (i) of sub-section (2) of section 14.

(5)

The members of the Board shall be entitled to such allowances, as may be laid down in Statutes, for attending meetings of the Board or as may be convened by the Institute.

16.

Resignation of Chairperson.

(1)

The Chairperson may, by writing under his hand addressed to the Visitor, resign his office.

(2)

Any member of the Board, except ex officio members, may, by writing under his hand addressed to the Chairperson, resign his office.

17.

Powers and functions of Board.

(1)

Subject to the provisions of this Act, the Board shall be responsible for the general policy making, superintendence, providing direction and shall have the power to frame, amend, modify or rescind the Statutes and the Ordinances governing the affairs of the Institute to achieve the objectives specified in section 6.

(2)

Without prejudice to the provisions of sub-section (1), the Board shall have the following powers, namely:-

(a)

to decide questions of policy relating to the Institute;

(b)

to establish departments, faculties or schools of studies and initiate programmes or courses of study at the Institute;

(c)

to examine and approve the annual budget estimates of the Institute;

(d)

to examine and approve the plan for development of the Institute and to identify sources of finance for implementation of the plan;

(e)

to create teaching, academic, administrative, technical and other posts and to make appointments thereto;

(f)

to provide by the Statutes, the qualifications, criteria and processes for appointment to teaching and other posts in the Institute;

(g)

to approve fees and other charges payable for pursuit of studies, courses or programmes in the Institute;

(h)

to make Statutes, subject to provisions of section 32, governing the administration, management and operations of such Institute;

(i)

to grant degrees, diplomas and other academic distinctions or titles, and to institute and award fellowships, scholarships, prizes and medals; and

(j)

to exercise such other powers and perform such other duties as may be conferred or imposed by this Act or the Statutes.

(3)

The Board may, subject to the provisions of this Act and the Statutes, delegate such powers and functions to the Senate or the Director, as the Board may deem fit.

(4)

The Board shall put in place policies to make the Institute self-sustaining within a period of five years.

(5)

The Board shall periodically conduct a review of the performance of the Director with specific reference to the leadership in the achievement of the objectives of the Institute.

(6)

The Board shall in exercise of the powers and discharge of functions strive to provide autonomy in academic matters to the Senate and departments of faculties or schools, as the case may be.

(7)

Wherein the opinion of the Director or the Chairperson, the situation is so emergent that an immediate decision needs to be taken in the interest of the Institute, the Chairperson, in consultation with the Director, may issue such orders as may be necessary, recording in writing the grounds for the opinion:

Provided that such orders shall be submitted for ratification of the Board in the next meeting.

18.

Senate.

(1)

The Senate of every Institute shall consist of the following persons, namely:-

(a)

the Director of the Institute who shall be the ex officio Chairperson of the Senate;

(b)

all Deans, ex officio;

(c)

heads of all departments, faculties or schools, ex officio, as the case may be, of the Institute;

(d)

all full-time professors other than the Deans or heads of the Departments;

(e)

three persons from amongst educationists of repute or persons from another field related to the activities of the Institute who are not in service of the Institute, nominated by the Board;

(f)

three persons who are not members of teaching staff co-opted by the Senate for their specialised knowledge; and

(g)

Registrar of the Institute, ex officio Secretary.

(2)

The term of office of members nominated under clauses (e) and (f) shall be for a period of two years from the date of nomination.

(3)

The term of office of an ex officio member shall continue so long as the member holds the office by virtue of which he is a member.

19.

Powers and functions of Senate.

(1)

Subject to the provisions of this Act, the Statutes and the Ordinances, the Senate shall be the principal academic body of the Institute and shall have the power to enact, amend or modify the Ordinances governing academic matters and the affairs and well-being of students.

(2)

Without prejudice to the provisions of sub-section (1), the Senate shall have the following powers, namely:-

(a)

to specify the criteria and procedure for admission to courses or programmes of study offered by the Institute;

- (b) to recommend to the Board creation of teaching and other academic posts, determination of the number and emoluments of such posts and defining the duties and conditions of service of teachers and other academic posts;
- (c) to recommend to the Board about starting of new programmes or courses of study;
- (d) to specify the broad academic content of programmes and courses of study and undertake modifications therein;
- (e) to specify the academic calendar and approve grant of degrees, diplomas and other academic distinctions or titles;
- (f) to appoint examiners, moderators, tabulators and such other personnel for different examinations;
- (g) to recognise diplomas and degrees of Universities and other Institutes and to determine equivalence with the diplomas and degrees of the Institute;
- (h) to suggest measures for departmental co-ordination;
- (i) to make major recommendations to the Board of Governors on-
 - (A) measures for improvement of standard of teaching, training and research;
 - (B) institution of chairs, fellowships, scholarships, studentships, freeships, medals and prizes and other related matters;
 - (C) establishment or abolition of departments or centres; and
 - (D) academic functioning of the Institute, discipline, residence, admissions, examinations, award of fellowships and studentships, freeships, concessions, attendance and other related matters;
- (j) to appoint sub-committees to advise on such specific matters as may be referred to by the Board or by itself;
- (k) to consider the recommendations of the sub-committees and to take such action including making of recommendations to the Board as may be required;
- (l) to take periodical review of the activities of the departments or centres and to take appropriate action including making of recommendations to the Board with a view to maintain and improve the standards of instructions, in the institutions; and
- (m) to exercise such other powers and discharge such other functions as may be assigned to it, by Statutes or otherwise, by the Board.

20.

Finance Committee.

- (1) The Finance Committee of each Institute shall consist of the following persons, namely:-

- (a) the Chairperson of the Board shall be the ex officio Chairperson of the Committee;
- (b) one representative of the Government of India, Ministry of Human Resource Development, Department of Higher Education handling the matters relating to finance, ex officio;
- (c) one representative of the State Government in which the Institute is located, ex officio;
- (d)

one representative of the industry partners chosen from amongst themselves;

(e)

the Director, ex officio; and

(f)

the officer in-charge of finance and accounts of the Institute, ex officio Secretary.

(2)

The members of the Finance Committee other than ex officio members shall hold office for a term of three years.

21.

Powers and functions of Finance Committee.

- The Finance Committee shall examine the accounts, scrutinise proposals for expenditure and financial estimates of the Institute and thereafter submit it to the Board together with its comments for approval.

22.

Meetings.

(1)

The Chairperson shall ordinarily preside over the meetings of the Board, Finance Committee and at the convocations of the Institute.

(2)

It shall be the duty of the Chairperson to ensure that the decisions taken by the Board are implemented.

(3)

The Chairperson shall exercise such other powers and perform such other duties as may be assigned to him by this Act or the Statutes.

23.

Director.

(1)

The Director shall be the principal executive officer of the Institute and shall be responsible for implementation of the decisions of the Board and Senate and for day-to-day administration of the Institute.

(2)

The Director shall be appointed by the Visitor, on such terms and conditions of service as may be laid down by the Statutes.

(3)

The Director shall be appointed out of the panel of names recommended by a search-cum-selection committee consisting of-

(a)

Chairperson of the Board, who shall be the Chairperson of the search-cum-selection committee;

(b)

two members, nominated by the Board, from amongst eminent administrators, industrialists, educationists, scientists, technocrats and management specialists;

(c)

nominee of the State Government in which the Institute is located;

(d)

nominee of one of the industry partners by rotation;

(e)

head of the Bureau, Ministry of Human Resource Development dealing with Indian Institutes of Information Technology-Member Secretary, ex officio;

(4)

The Director shall exercise the powers and perform the duties as may be assigned under this Act or the Statutes or Ordinances, or as may be delegated by the Board.

(5)

The Director shall, except on account of resignation or removal, hold office for a period of five years from the date of assumption of charge as Director.

(6)

The Director may, by writing under his hand addressed to the Chairperson, resign his office.

(7)

The Visitor may remove from office the Director, who-

(a)

has been adjudged as insolvent; or

(b)

has been convicted of an offence which, in the opinion of the Visitor, involves moral turpitude; or

(c)

has become physically or mentally incapable of acting as a Director; or

(d)

has acquired such financial or other interest as is likely to affect pre-judicially the functions as a Director; or

(e)

has so abused the position or so conducted as to render the continuance in office prejudicial to the public interest:

Provided that the Director shall not be removed from office except by an order made by the Visitor, after an enquiry instituted by the Board, in which the Director has been informed of the charges and given a reasonable opportunity of being heard in respect of those charges.

(8)

The Board shall initiate the process of appointment in respect of any vacancy due to arise for the post of Director on completion of tenure before a period of six months from the date of arising of such vacancy and that the process of appointment shall be completed before such vacancy arises.

(9)

Where the post of Director falls vacant on account of any reason other than completion of tenure, the process of appointment shall be initiated by the Board within one month of such vacancy and process shall be completed as early as possible.

24.

Registrar.

(1)

The Registrar of every Institute shall be appointed on such terms and conditions as may be laid down by the Statutes.

(2)

The Registrar shall exercise such powers and perform such duties as may be assigned to him by the Statutes or by the Director.

(3)

The Registrar shall be responsible to the Director for the proper discharge of his functions.

25.

Review of performance of Institute.

(1)

The Institute shall, within five years from the date of establishment and incorporation under this Act and thereafter at the expiration of every fifth year, constitute, with the prior approval of the Board, a review committee or shall appoint an agency as a third party to evaluate the performance of the Institute and its achievements with respect to its objectives during the said period.

(2)

The review committee constituted under sub-section (1) shall consist of members of repute in academia or industry, from relevant fields of teaching, learning and research in such Institute.

(3)

The third party agency appointed under sub-section (1) shall have past experience of conducting such evaluations.

(4)

The review committee or the third party agency, as the case may be, shall assess the performance of Institute and shall submit its report with recommendations on-

(a)

the extent of fulfilment of the objects of the Institute mentioned in section 6, as demonstrated by the state of teaching, learning and research, and its contribution to the society;

- (b)
the promotion of transformational research and its impact on industry and society;
- (c)
the advancement of fundamental research beyond the current frontiers of knowledge;
- (d)
the establishment of the Institute as amongst the global leaders in the area of information technology;
- (e)
such other parameters as the Board may consider necessary and specify.

(5)
The Board shall place the report of the review committee or the third party agency in the public domain and on its website and consider the recommendations referred to in sub-section (3) and take such action as it may deem fit: Provided that the recommendations of the review committee or the third party agency along with an explanatory memorandum on the action taken or proposed to be taken, specifying the reasons thereof, shall be submitted to the Central Government.

Chapter IV

Accounts and Audit

26.

Grants by Central Government and State Governments.

(1)
For the purposes of enabling the Institute to discharge their functions efficiently under this Act, the Central Government and the State Government may, after due appropriation made by the Parliament and the concerned State Legislature, as the case may be, by law in this behalf, pay to each Institute in every financial year such sums of money in such manner as is required to fulfil their obligations under section 11.

(2)
The Central Government and the concerned State Government shall provide to each Institute, grants of such sums of money as are required to meet the expenditure on scholarships or fellowships instituted by it, including scholarships or fellowships for students from socially and educationally backward classes of citizens enrolled in such Institute.

27.

Fund of Institute.

(1)
Every Institute shall maintain a Fund to which shall be credited-

- (a)
all monies provided by the Central Government or the State Government or industry partner, as the case may be;
- (b)
all fees and other charges received by the Institute from students;
- (c)
all monies received by the Institute by way of grants, gifts, donations, benefactions, bequests or transfers;
- (d)
all monies received by the Institute from utilisation of intellectual property arising from research conducted or provision of advisory or consultancy services by it; and
- (e)
all monies received by the Institute in any other manner or from any other source.

(2)
The Fund of every Institute shall be applied towards meeting the expenses of the Institute including expenses incurred in the exercise of its powers and discharge of its duties under this Act, furtherance of research in the Institute or in collaboration with other educational institutions or industry and for capital investment aimed at the growth and development of the Institute.

(3)
All monies credited to the Fund of every Institute shall be deposited in such banks or invested in such manner as the Institute may, with approval of the Board, decide.

(4)

Each Institute shall create a corpus fund for long term sustainability of the Institute, to which shall be credited such per cent. of the net income of the Institute and donations made specifically towards such corpus fund as the Central Government may, in accordance with the provisions of the Income-tax Act, 1961, notify:

Provided that the Board may also create endowment funds for specific purpose to which donations may be specifically made.

28.

Accounts and audit.

(1)

Every Institute shall maintain proper accounts and other relevant records and prepare annual statement of accounts including the balance sheet in such form and accounting standard as may be specified by notification, by the Central Government in consultation with the Comptroller and Auditor-General of India.

(2)

Where the statement of income and expenditure and the balance sheet of the Institute do not comply with the accounting standards, the Institute shall disclose in its statement of income and expenditure and balance sheet, the following, namely:-

(a)

the deviation from the accounting standards;

(b)

the reasons for such deviation; and

(c)

the financial effect, if any, arising out due to such deviation.

(3)

The accounts of every Institute shall be audited by the Comptroller and Auditor- General of India or any other person in accordance with the provisions of the extant rules and any expenditure incurred by audit team in connection with such audit shall be payable by the Institute to the Comptroller and Auditor-General of India or such person.

(4)

The Comptroller and Auditor-General of India and any person appointed in connection with the audit of the accounts of any Institute shall have the same rights, privileges and authority in connection with such audit as the Comptroller and Auditor-General of India has in connection with the audit of the Government accounts and, in particular shall have the rights to demand the production of books, accounts, connected vouchers and other documents and papers and to inspect the offices of the Institute.

(5)

The accounts of every Institute as certified by the Comptroller and Auditor-General of India or any other person appointed in this behalf together with the audit report thereon shall be forwarded annually to the Central Government.

29.

Pension and provident fund.

- Every Institute may constitute for the benefit of its employees such provident or pension fund or provide such insurance scheme as it may deem fit in such manner and subject to such conditions as may be laid down by the Statutes.

30.

Appointments.

- All appointments of the staff of every Institute, except that of the Director, shall be made in accordance with the procedure laid down in the Statutes.

31.

Statutes.

- Subject to the provisions of this Act, the Statutes may provide for all or any of the following matters, namely:-

(a)

the formation of departments of teaching;

(b)

the institution of fellowships, scholarships, exhibitions, medals and prizes;

(c)

the terms of office and the method of appointment of officers of the Institute;

- (d)
the qualifications of teachers of the Institute;
- (e)
the classification, method of appointment and the determination of the terms and conditions of service of teachers and other staff of the Institute;
- (f)
the constitution of pension, insurance and provident funds for the benefit of the officers, teachers and other staff of the Institute as per the provisions existing from time to time;
- (g)
the constitution, powers and duties of the authorities of the Institute;
- (h)
the establishment and maintenance of halls and hostels;
- (i)
the conditions of residence of students of the Institute and the levying of fees for residence in the halls and hostels and of other charges;
- (j)
the allowances to be paid to the Chairperson and members of the Board;
- (k)
the authentication of the orders and decisions of the Board;
- (l)
the meetings of the Board, the Senate, or any committee, the quorum at such meetings and the procedure to be followed in the conduct of their business; and
- (m)
any other matter as may be considered necessary for the efficient functioning of the Institute.

32.

Statutes how to be made.

- (1)
The first Statute of each Institute shall be framed by the Board with the prior approval of the Visitor.

- (2)
The Board may, from time to time, make new or additional Statutes or may amend or repeal the Statutes.

33.

Ordinances.

- Subject to the provisions of this Act and the Statutes, the Ordinances of every Institute may provide for all or any of the following matters, namely:-

- (a)
the admission of the students to the Institute;
- (b)
the courses of study to be laid down for all degrees and diplomas of the Institute;
- (c)
the conditions under which students shall be admitted to the degree or diploma courses and to the examinations of the Institute, and shall be eligible for degrees and diplomas;
- (d)
the conditions of award of the fellowships, scholarships, exhibitions, medals and prizes;
- (e)
the conditions and mode of appointment and duties of examining bodies, examiners and moderators;
- (f)
the conduct of examinations;
- (g)
the maintenance of discipline among the students of the Institute; and
- (h)
any other matter which by this Act or the Statutes is to be or may be provided for by the Ordinances.

34.

Ordinances how to be made.

(1)

Save as otherwise provided in this section, Ordinances shall be made by the Senate.

(2)

All Ordinances made by the Senate shall have effect from such date as it may direct, but every Ordinance so made shall be submitted, as soon as may be, to the Board and shall be considered by the Board at its next meeting.

(3)

The Board shall have power by resolution to modify or cancel any such Ordinance and such Ordinance shall from the date of such resolution stand modified accordingly or cancelled, as the case may be.

35.

Tribunal of Arbitration.

(1)

(a)

Any dispute arising out of a contract between an Institute and any of its employees shall, at the request of the employee concerned or at the instance of the Institute, be referred to a Tribunal of Arbitration consisting of one member appointed by the Institute, one member nominated by the employee, and an umpire appointed by the Visitor.

(b)

The decision of the Tribunal shall be final and shall not be questioned in any court.

(c)

No suit or proceeding shall lie in any court in respect of any matter, which is required by sub-section (1) to be referred to the Tribunal of Arbitration.

(d)

The Tribunal of Arbitration shall have power to regulate its own procedure:

Provided that the Tribunal shall have regard to the principles of natural justice while making such procedure.

(e)

Nothing in any law for the time being in force relating to arbitration shall apply to arbitrations under this section.

(2)

Any student or candidate for an examination whose name has been removed from the rolls of the Institute by the orders or resolution of the Director of the Institute and who has been debarred from appearing at the examinations of the Institute for more than one year, may within ten days of the date of receipt of such resolution by him, appeal to the Board who may confirm, modify or reverse the decision of the Director.

(3)

Any dispute arising out of any disciplinary action taken by the Institute against a student shall, at the request of such student, be referred to a Tribunal of Arbitration and the provisions of sub-section (1) shall, as far as may be, apply to a reference made under this sub-section.

(4)

Every employee or student of the Institute, notwithstanding anything contained in this Act, have a right to appeal within such time as may be laid down by the Statutes, to the Board of Governors against the decision of any officer or authority of the Institute, as the case may be, and thereupon the Board may confirm, modify or reverse the decision appealed against.

36.

Annual report of Director.

(1)

There shall be attached to every statement of accounts laid before the Board of each Institute, a report by its Director, with respect to-

(a)

the state of affairs of such Institute;

(b)

the amount, if any, which it proposes to carry forward to any surplus reserves in its balance sheet;

(c)

the extent to which understatement or overstatement of any surplus of income over expenditure or any shortfall of expenditure over income has been indicated in the auditor's report and the reasons for such understatement or overstatement;

(d)

the productivity of research projects undertaken by the Institute measured in accordance with such norms as may be specified by any statutory regulatory authority;

(e)

appointments of the officers and teachers of the Institute;

(f)

benchmark and internal standards set by the Institute, including the nature of innovations in teaching, research and application of knowledge.

(2)

The Director shall also be bound to give the complete information and explanation in its report on every reservation, qualification or adverse remark contained in the auditors' report.

37.

Annual report of each Institute.

(1)

The annual report of each Institute shall be prepared under the direction of the Board, which shall include, among other matters, the steps taken by the Institute towards the fulfilment of its objects and an outcome based assessment of the research being undertaken in such Institute, and be submitted to the Board on or before such date as may be specified and the Board shall consider the report in its annual meeting.

(2)

The annual report as approved by the Board shall be published and placed on the website of the Institute.

(3)

The Board shall prepare and release for every year a report, in English and in Hindi, the working of the Institute in the previous year on or before the expiry of nine months from the close of financial year, and a copy of the same, together with an audited statement of accounts showing the income and expenditure for the previous year shall be submitted to the Central Government and the concerned State Government within that stipulated time, and the same may be caused to be laid before each House of Parliament and the concerned State Legislature.

Chapter V

Co-Ordination Forum

38.

Co-ordination Forum.

(1)

In order that there may be better co-ordination among the Institutes, the Central Government may, by notification in the Official Gazette, establish, with effect from such date as may be specified in the notification, a central body to be called the Co-ordination Forum for all the Institutes specified in column (5) of the Schedule.

(2)

The Co-ordination Forum shall consist of the following members, namely:-

(i)

the Minister in-charge of the Ministry or Department of the Central Government having administrative control of technical education, ex officio, as Chairperson;

(ii)

Secretary to the Government of India, in-charge of the Department of the Central Government having administrative control of technical education, ex officio;

(iii)

four Secretaries in-charge of department looking after Indian Institutes of Information Technology of State Governments in which the Institutes are located, to be nominated by the Chairperson of the Co-ordination Forum, by rotation for two years, ex officio;

(iv)

four Chairpersons of the Institutes, to be nominated by the Chairperson of the Co-ordination Forum, by rotation for two

years;

(v)

the Directors of each of the Institutes, ex officio;

(vi)

four industry partners, to be nominated by the Chairperson of the Co-ordination Forum, not more than one from any Institute, by rotation every two years;

(vii)

three persons of eminence, of which at least one shall be a woman, in academia, industry or public service, to be nominated by the Co-ordination Forum; and

(viii)

one representative of All India Council of Technical Education:

Provided that while nominating under clauses (iii), (iv) and (vi), care shall be taken to ensure representation of as many Institutes as possible by selecting Secretaries of State Governments, Chairpersons of the Institutes, and representatives of industry partners from the Board of different Institutes to the extent possible.

(3)

An officer of the Department of Higher Education, Government of India, not below the rank of Joint Secretary, concerned with technical education, ex officio, to act as the Member-Secretary of the Co-ordination Forum.

(4)

The Co-ordination Forum may, at its discretion, constitute a Standing Committee of the Indian Institute of Information Technology Co-ordination Forum (Public-private Partnership) to assist the Co-ordination Forum in discharge of its duties and responsibilities.

(5)

The expenditure on the Co-ordination Forum shall be met by the resources pooled by all the Institutes governed by this Act.

39.

Term of office and allowances payable to members of Co-ordination Forum.

(1)

The term of office of a member referred to in clause (viii) of sub-section (2) of section 38 shall be three years from the date of nomination.

(2)

The term of office of an ex officio member shall continue so long as the member holds the office by virtue of which he is a member.

(3)

While nominating members to the Co-ordination Forum under clauses (iii), (iv) and (vi) of sub-section (2) of section 38, the Chairperson of the Co-ordination Forum shall, to the extent possible, ensure maximum possible representation from each Institute.

(4)

The members of the Co-ordination Forum shall be entitled to travelling and such other allowances, as may be prescribed, for attending meetings of the Co-ordination Forum or its Committees thereof.

40.

Functions and duties of Co-ordination Forum.

(1)

The Co-ordination Forum shall facilitate the sharing of experience, ideas and concerns with a view to enhancing the performance of all the Institutes.

(2)

Without prejudice to the provisions of sub-section (1), the Co-ordination Forum shall perform the following functions, namely:-

(a)

advise the Central Government to include a new institution or exclude an existing institution from the Schedule;

(b)

deliberate on such matters of common interest to Institutes as may be referred to it by any Institute;

(c)

promote necessary co-ordination and co-operation in the working of the Institutes;

(d)

recommend to the Central Government, the institution of scholarships including for research and for the benefit of students belonging to the Scheduled Castes, the Scheduled Tribes and other socially and educationally backward classes of citizens; and

(e)

perform such other functions as may be referred to it by the Central Government or any State Government:

Provided that nothing in this section shall derogate the powers and functions vested by law in the Board or Senate or other authorities of each Institute.

(3)

The Chairperson of the Co-ordination Forum shall ordinarily preside at the meetings of the Co-ordination Forum and in the absence, the Secretary to the Government of India, in-charge of the Department of the Central Government having administrative control of technical education, shall preside at the meeting.

(4)

The Co-ordination Forum shall meet at least once in every year, or as and when deemed necessary by the Chairperson of the Co-ordination Forum, and follow such procedure in its meetings, as may be prescribed.

Chapter VI

Miscellaneous

41.

Power to make rules.

(1)

The Central Government may, after previous publication, by notification make rules for carrying out the provisions of this Act.

(2)

In particular, and without prejudice to the generality of the foregoing power, such rules may provide for all or any of the following matters, namely:-

(a)

the form and manner in which the State Government shall submit proposal to the Central Government under sub-section (2) of section 11;

(b)

the investment proposal of capital in establishment of the Institute and the respective shares under sub-section (7) of section 11;

(c)

the travelling and other allowances payable to members of the Co-ordination Forum under sub-section (4) of section 39;

(d)

the procedure to be followed in the meetings of the Co-ordination Forum under sub-section (4) of section 40.

42.

Acts and proceedings not to be invalidated by vacancies, etc.

- No act of the Co-ordination Forum, or any Institute or Board or Senate or any other body set up under this Act or the Statutes, shall be invalid merely by reason of-

(a)

any vacancy or defect in the constitution thereof; or

(b)

any irregularity in its procedure not affecting the merits of the case; or

(c)

any defect in the selection, nomination or appointment of a person acting as a member thereof.

43.

Returns and information to be provided to Central Government or State Government.

(1)

The Institute shall furnish to the Central Government such returns or other information with respect to its policies or

activities as the Central Government may, for the purpose of reporting to Parliament or for the making of policy, from time to time require.

(2)

The Institute, shall furnish to the State Government in which such Institute is located, such returns or other information with respect to its policies or activities as that Government may, for the purpose of reporting to the concerned State Legislature or for the making of policy, from time to time require.

44.

Power of Central Government to issue directions.

- The Institute shall carry out such directions as may be issued to it from time to time by the Central Government for the efficient administration of this Act.

45.

Institute to be public authority under Right to Information Act.

- The provisions of the Right to Information Act, 2005 shall apply to each Institute, as if it were a public authority defined in clause (h) of section 2 of the Right to Information Act, 2005.

46.

Transitional provisions.

- Notwithstanding anything contained in this Act-

(1)

(a)

the Board of every Institute functioning as such immediately before the commencement of this Act shall continue to function until a new Board is constituted for that Institute under this Act, but on the constitution of a new Board under this Act, the members of the Board holding office before such commencement of this Act shall cease to hold office;

(b)

every Senate constituted in relation to every Institute before the commencement of this Act shall be deemed to be the Senate constituted under this Act until a Senate is constituted under this Act for that Institute, but on the constitution of the new Senate under this Act, the members of the Senate holding office before the commencement of this Act shall cease to hold office;

(c)

rules, bye-laws and Ordinances of each existing Institute as in force, immediately, before the commencement of this Act, shall continue to apply in the corresponding institute in so far as they are not inconsistent with the provisions of this Act, until the first Statutes and Ordinances are made under this Act;

(d)

in case there are no such rules, bye-laws or Ordinances, the Statutes, Ordinances, rules and regulations of one of the existing centrally funded Indian Institutes of Information Technology as adopted by the Board of the concerned Institute, shall apply to the Institute in so far as they are not inconsistent with the provisions of the Act until the first Statutes and the Ordinances are made under this Act.

(2)

The Central Government may, without prejudice to the provisions of sub-section (1), if it considers necessary and expedient to do so, by notification, take such measures which may be necessary for the transfer of the existing Institute to the corresponding Institute mentioned under column (5) of the Schedule.

47.

Power to remove difficulties.

(1)

If any difficulty arises in giving effect to the provisions of this Act, the Central Government may, by order published in the Official Gazette, make such provisions or give such directions not inconsistent with the provisions of this Act, as appears to it to be necessary or expedient for removing the difficulty:

Provided that no such order shall be made under this section after the expiry of the period of three years from the date of commencement of this Act.

(2)

Every order made under this section shall be laid, as soon as may be after it is made, before each House of Parliament.

48.

Laying of rules, Statutes, Ordinances and notifications.

- Every rule, Statute, Ordinance made, and every notification issued, by the Central Government under this Act, shall be laid, as soon as may be after it is made or issued, before each House of Parliament, while it is in session, for a total period of thirty days which may be comprised in one session or in two or more successive sessions, and if, before the expiry of the session immediately following the session or the successive sessions aforesaid, both Houses agree in making any modification in the rule, Statute, Ordinance or notification or both Houses agree that the rule, Statute, Ordinance or notification should not be made or issued, the rule, Statute, Ordinance or notification shall thereafter have effect only in such modified form or be of no effect, as the case may be; so, however, that any such modification or annulment shall be without prejudice to the validity of anything previously done under that rule, Statute, Ordinance or notification.

The Schedule

[See section 4(1)]

Sl. No.

Name of the State

Name of the existing institute

Location

Name of Institute Incorporated under this Act

(1)

(2)

(3)

(4)

(5)

1.

Andhra Pradesh

Indian Institute of Information Technology, Sri

City Chittoor, being a society registered under the Societies

Registration Act, 1860 (21 of 1860)

Indian Institute of Information Technology, Sri City, Chittoor

Indian Institute of Information Technology, Sri City, Chittoor.

2.

Assam

Indian Institute of Information Technology,

Guwahati, being a society registered under the Societies

Registration Act, 1860 (21 of 1860)

Indian Institute of Information Technology, Guwahati

Indian Institute of Information Technology, Guwahati.

3.

Gujarat

Indian Institute of Information Technology,

Vadodara, being a society registered under the Societies

Registration Act, 1860 (21 of 1860)

Indian Institute of Information Technology, Vadodara

Indian Institute of Information Technology, Vadodara.

4.

Haryana

Indian Institute of Information Technology,

Sonepat, being a society registered under the Societies

Registration Act, 1860 (21 of 1860)

Indian Institute of Information Technology, Sonepat

Indian Institute of Information Technology, Sonepat.

5.

Himachal Pradesh

Indian Institute of Information Technology, Una,
being a society registered under the Societies Registration Act,
1860 (21 of 1860)

Indian Institute of Information Technology, Una
Indian Institute of Information Technology, Una.

6.

Jharkhand

Indian Institute of Information Technology,
Ranchi, being a society registered under the Societies
Registration Act, 1860 (21 of 1860)

Indian Institute of Information Technology, Ranchi
Indian Institute of Information Technology, Ranchi.

7.

Karnataka

Indian Institute of Information Technology,
Dharwad, being a society registered under the Societies
Registration Act, 1860 (21 of 1860)

Indian Institute of Information Technology, Dharwad
Indian Institute of Information Technology, Dharwad.

8.

Kerala

Indian Institute of Information Technology,
Kottayam, being a society registered under the Societies
Registration Act, 1860 (21 of 1860)

Indian Institute of Information Technology, Kottayam
Indian Institute of Information Technology, Kottayam.

9.

Maharashtra

Indian Institute of Information Technology,
Nagpur, being a society registered under the Societies
Registration Act, 1860 (21 of 1860)

Indian Institute of Information Technology, Nagpur
Indian Institute of Information Technology, Nagpur.

10.

Maharashtra

Indian Institute of Information Technology,
Pune, being a society registered under the Societies Registration
Act, 1860 (21 of 1860)

Indian Institute of Information Technology, Pune
Indian Institute of Information Technology, Pune.

11.

Manipur

Indian Institute of Information Technology,
Senapati, being a society registered under the Societies
Registration Act, 1860 (21 of 1860)

Indian Institute of Information Technology, Senapati
Indian Institute of Information Technology, Senapati.

12.

Rajasthan

Indian Institute of Information Technology,

Kota, being a society registered under the Societies Registration Act, 1860 (21 of 1860)

Indian Institute of Information Technology, Kota

Indian Institute of Information Technology, Kota.

13.

Tamil Nadu

Indian Institute of Information Technology,

Tiruchirapalli, being a society registered under the Societies Registration Act, 1860 (21 of 1860)

Indian Institute of Information Technology, Srirangam, Tiruchirapalli

Indian Institute of Information Technology, Tiruchirapalli.

13A.

Tripura

Indian Institute of Information Technology,

Agartala, being a society registered under the Societies Registration Act, 1860 (21 of 1860)

Indian Institute of Information Technology, Agartala

Indian Institute of Information Technology, Agartala.

14.

Uttar Pradesh

Indian Institute of Information Technology,

Lucknow, being a society registered under the Societies Registration Act, 1860 (21 of 1860)

Indian Institute of Information Technology, Lucknow

Indian Institute of Information Technology, Lucknow.

15.

West Bengal

Indian Institute of Information Technology,

Kalyani, being a society registered under the Societies Registration Act, 1860 (21 of 1860)

Indian Institute of Information Technology,

Kalyani

Indian Institute of Information Technology, Kalyani.

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Translation